

STATE OF NEW YORK
SUPREME COURT: COUNTY OF NEW YORK

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Rabab Musa

Plaintiff,

-against-

The City of New York, New York City Police
Department, Detective Issa, Officers John and
Jane Does 1-10, in their individual and official
capacities,

Defendants.

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Index No:

Complaint and Jury Demand

FACTS

1. At all times mentioned Plaintiff was a residents of New York County, City and State of New York.
2. At all times mentioned, Defendant City of New York, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
3. At all times mentioned, Defendant New York Police Department is an entity duly organized and existing by virtue of the laws of the State of New York.
4. At all relevant times, Defendant officer/Detective Issa is a police officer named herein in his individual and official capacity, and at all times acting as an agent for the NYPD and City of New York.

5. At all relevant times, Defendant officers John and Jane Does are police officers in their individual and official capacities, at all times acting as agents for the NYPD and City of New York.
6. Within ninety (90) days after the claim herein arose, the Plaintiff served a Notice of Claim in writing upon Defendants, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendants, of the nature, time, place, and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.
7. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety days after the happening of the event upon which the claims are based.
8. All conditions and requirements precedent to the commencement of this action have been complied with.
9. The oral examination of the Plaintiff has been conducted in compliance with Section 50-H of the General Municipal law.
10. This actions falls within one or more exceptions set forth in the CPLR.
11. Pursuant to CPLR Section 1602(2)(iv), Defendants are jointly and severally liable for all of Plaintiffs' damages, including but not limited to Plaintiffs' non-economic

loss.

12. Plaintiff is a mother of four who has never been arrested in her life.

13. On approximately September 6, 2016 at approximately 6:00 p.m., in New York County, Plaintiff was unlawfully arrested as she left Starbucks to go home to her waiting family.

14. Plaintiff was approached by two officers who demanded to see her identification.

15. Plaintiff promptly complied with their request, despite them having no legal justification to demand her identification.

16. The officers then told the Plaintiff she was under arrest and proceeded to handcuff her.

17. Plaintiff repeatedly asked the Officers why they were arresting her but they refused to answer.

18. Plaintiff was taken to, upon information and belief, Midtown South precinct where she was invasively searched.

19. Moreover, Plaintiff practices the Islamic faith and wears a hijab as part of her religious practice.

20. The hijab is a sign of modesty for women in the Islamic faith and those who wear it do so in part to cover their hair from the opposite sex.

21. Plaintiff was forced to remove the hijab in violation of her rights and the hijab was confiscated.

22. Plaintiff was put in a cell where men could and did observe her without her hijab.

23. For Muslim women who wear hijab, being forced to remove the hijab in public and being paraded around without it is akin to being paraded around naked.
24. Plaintiff was detained for several hours in the precinct, and was denied the right to call her worried family and tell them where she was.
25. After several hours, two officers handcuffed Plaintiff and drove her to a precinct in Brooklyn.
26. Plaintiff again asked why she was being arrested and driven to Brooklyn, but the officers refused to answer her.
27. At the precinct in Brooklyn, Plaintiff was strip searched in violation of her rights and her hijab was once again taken from her.
28. Plaintiff repeatedly asked for her hijab back, but the request was summarily denied. She was paraded throughout the precinct without her hijab and male officers and others were permitted to see her without her religious covering.
29. Plaintiff was repeatedly denied the right to call her worried family to tell them where she was.
30. A male officer then approached Plaintiff to take her picture on his cell phone without her hijab.
31. Plaintiff protested and refused to consent. She also demanded to know why he was taking her picture on his cell phone.
32. The Defendants refused to answer any questions and took her picture without her consent.

33. A few more hours had passed when Plaintiff was brought into an interrogation room.

34. Plaintiff was interrogated by the Defendants.

35. They demanded that she “confess to what she did” or else she would not be allowed to go home.

36. Plaintiff repeatedly insisted that she did nothing wrong.

37. Defendants nonetheless interrogated her for more than an hour, seeking to get her to confess to something.

38. Plaintiff refused to confess to anything and repeatedly demanded to be let go.

39. At approximately 12:30 a.m., Plaintiff was told that she was being released without any charges and she would have to find her own way home back to Manhattan.

40. Plaintiff was never charged with any crime and nor was she ever provided an explanation of why she was arrested, moved between Boroughs, and detained until after midnight.

41. The Defendants’ conduct caused the Plaintiff to experience great anxiety, panic attacks when she sees police approaching her direction, loss of sleep, and general feeling of not wanting to leave her home.

42. Defendants have violated Plaintiffs Federal and State rights.

Count I. Unlawful/False Arrest, False Imprisonment

43. Plaintiffs repeat each and every allegation in this Complaint as though fully set forth at length herein.

44. Plaintiff was detained and arrested without any probable cause or legal justification for doing so.

45. This was done in direct violation of Plaintiff's Federal and State Civil Rights.

46. Plaintiff was conscious of her confinement and did not consent to it.

47. Plaintiff was unlawfully searched and seized under the Fourth Amendment and under the totality of the circumstances the Defendants' actions were not objectively reasonable, given that Defendants illegally searched, falsely arrested, detained, seized Plaintiff by arresting Plaintiff without any legal justification.

48. By reason and/or as a result of Defendants' acts and/or omissions, Plaintiff was deprived of her liberty, caused physical and emotional injury, anguish, and embarrassment, and was otherwise injured and/or harmed.

Count II. Unlawful Search and Seizure

49. Plaintiffs repeat each and every allegation in this Complaint as though fully set forth at length herein.

50. Defendants, without any warrant or justification, wholly lacking in any cause whatsoever, probable or otherwise, illegally and improperly searched, detained, arrested, and seized Plaintiff. Defendants had no legal basis to search, detain, arrest, seize, or cause charges to be issued, and did so maliciously with a motive to improperly detain, arrest, and imprison Plaintiff.

51. All of these actions were undertaken in violation of the Fourth Amendment's proscription of unreasonable searches and seizures.

52. The acts and/or omissions described herein were undertaken and conducted in a willful and malicious manner, with an immoral purpose to injure the person, reputation, standing and integrity of Plaintiff. Defendants are, therefore, liable to Plaintiff for punitive damages.

53. As a direct and proximate result of Defendants' acts and/or omissions, Plaintiff was humiliated, disgraced, suffered damage to her reputation, physical and mental anguish and injury and monetary loss and damage all to his great detriment.

Count III. Negligence

54. Plaintiffs repeat each and every allegation in this Complaint as though fully set forth at length herein.

55. Plaintiff were negligent in their actions and had no lawful basis to take them.

56. As a result of the Defendants' breach of duty to the Plaintiff, they caused Plaintiff serious and substantial harm, including significant psychological and emotional damage.

Count IV. Unequal Protection

57. Plaintiffs repeat each and every allegation in this Complaint as though fully set forth at length herein.

58. Plaintiff was targeted for unequal treatment because she practices the Islamic faith.

59. Plaintiff was treated differently than others who do not practice Islam and was required to remove her religious dress for no legitimate reason.

60. Plaintiff was also paraded around without her religious dress.

61. Moreover, Plaintiff was not afforded the same protection as other religious groups who are not required to remove religious clothing.

Count V. Violation of First Amendment Rights

62. Plaintiffs repeat each and every allegation in this Complaint as though fully set forth at length herein.

63. Plaintiff's religious beliefs and freedom to exercise her religion were violated by the Defendants.

64. Despite no legitimate reason to do so, Defendants forced Plaintiff to remove her hijab in violation of her rights.

65. She was also paraded around without her hijab in violation of her freedom to exercise her religion.

66. Defendants had no legitimate or compelling reason to force Plaintiff to remove her hijab, photograph her without the hijab, and take it away from her while she was in custody.

Count VI. Negligent and Intentional Infliction of Emotional Distress

67. Plaintiffs repeat each and every allegation in this Complaint as though fully set forth at length herein.

68. Defendants conduct described above, including but not limited to, the false arrest, strip search, violation of Plaintiff's religious freedom and the removal of the hijab, caused Plaintiff substantial emotional distress.

Count VII. Assault, Battery, and invasion of Person/Privacy

69. Plaintiffs repeat each and every allegation in this Complaint as though fully set forth at length herein.

70. Defendants' conduct constituted an assault and battery of Plaintiff, putting her in imminent fear of her bodily person.

71. Defendants' actions also were unprivileged as a matter of law and thus constitute an unlawful touching of Plaintiff.

72. Defendants stripped search the Plaintiff.

73. Defendants also forced Plaintiff to walk around without her religious covering.

Count VIII. Violation of Federal and State Constitutional Rights, NYC Human Rights

74. Plaintiffs repeat each and every allegation in this Complaint as though fully set forth at length herein.

75. Defendant police officers at all times relevant, were duly appointed, and acting agents and officers of the City of New York and the NYPD.

76. At all relevant times, Defendant officers were acting under color of law. To wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York and the NYPD.

77. Plaintiff was and at all relevant times herein, a citizen of the United States and resident of New York County in the State and City of New York, and brings this cause of action pursuant to the U.S. Constitution, 42 United States Code Section 1983 and 42 United States Code Section 1988 as well as State and City Civil Rights Laws.

78. The above described conduct of the Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution, in addition to the claims plead above U.S. Constitution, 42 United States Code Section 1983 and 42 United States Code Section 1988 as well as State and City Civil Rights laws, and in addition to the other claims alleged herein in violation of :

- A. Freedom from racial and religious discrimination; and
- B. Equal protection under the law.

79. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiffs' rights or with deliberate indifference to those rights used guaranteed under the Fourth and Fourteenth Amendments of the United States Constitution as well as the New York State Constitution and common law.

80. The direct and proximate result of Defendants' acts is that Plaintiffs have suffered, and continues to suffer, injuries of a physical and psychological nature.

COUNT IX-Failure to Train, Supervise, Respondent Superior, and *Monell* Liability

81. Plaintiffs repeat each and every allegation in this Complaint as though fully set forth at length herein.

82. Defendant City of New York is liable for all of the actions of their officers, agents, and anyone acting on their behalf.

83. Defendants City of New York and NYPD has grossly failed to train and adequately supervise its Officers so as to prevent the violation of Plaintiff's rights as described herein.

84. This is one of many cases in which police officers fail to exercise caution, restraint, control, apply correct legal standards for detaining and arresting an individual, and respect for the religious rights of citizens during an arrest and when interacting with them.

85. For example Plaintiff should not have been stripped searched, and nor should she have been forced to remove her hijab, be photographed without it, denied its return, and paraded around public without it.

86. The City of New York and NYPD were deliberately indifferent and negligent by failing to implement a policy with its officers that would prevent them from perpetrating the above described conduct in violation of Plaintiff's Constitutional rights and dignity.

87. The City of New York and NYPD are negligent, deliberately indifferent, and or irresponsible due to their failure to implement a policy with its officer, or actively enforce the law and train its officers and personnel about it.

88. The City of New York and NYPD thus maintained a policy, custom, and practice that lead to the directly violation of Plaintiff's rights as alleged herein.

89. The foregoing acts, omissions and systematic failures are customs and policies of the City of New York and NYPD which caused Defendant officers to perpetrate the above described conduct and violation of Plaintiff's Rights.

Count X-Negligent Hiring, Training, Retention, and Supervision

36. Plaintiffs repeat each and every allegation in this Complaint as though fully set forth at length herein.

37. Defendants City of New York and NYPD were negligent in failing to train their officer in the principles of probable cause, religious liberties, and the religious liberties of individuals arrested, including but not limited to, the removal of their religious garb.

38. Defendants City of New York and NYPD were also negligent in that prior to and at the time of the acts complained herein, due to the prior history of Defendant Officers, knew or should have known the bad disposition of said officers and Defendants had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that the Defendant Officers were not suitable to be hired and employed by the City of New York and

NYPD, and that due to their lack of training, Defendant Officers should have had adequate supervision so that they would not perpetrate the actions described above.

39. Defendants failed to train its officers to not strip search the Plaintiff or remove her religious garb.

40. Thus the Defendant is guilty of Negligent Hiring and Supervision, failure to train, and liable for all state claims alleged herein under the theory of Respondent Superior.

Count XI-Failure to Intervene

41. Plaintiff repeats each and every Paragraph as if fully set forth herein.

42. Each of the Defendant officers engaged in the violation of Plaintiff's rights as described above.

43. While each Defendant officer was engaged in the violation of Plaintiff's rights, the others failed to intervene to prevent it.

44. The Defendant officers watched as Plaintiff's rights were violated.

45. Each of the Defendants had an opportunity to intervene and stop the violation of rights.

46. Rather than intervene to stop the violation of Plaintiff's rights, as the law mandates they do, the Defendant officers did nothing and permitted it to occur.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the

jurisdictional limit of any lower court where otherwise have jurisdiction, together with attorney's fees and costs of bringing this case and punitive damages.

Dated: New York, NY
February 20, 2017

s/ Aymen A. Aboushi
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SUPREME COURT: COUNTY OF NEW YORK

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Rabab Musa	:	
	:	Index No:
Plaintiff,	:	
-against-	:	
	:	Summons
The City of New York, New York City Police	:	
Department, Detective Issa, Officers John and	:	
Jane Does 1-10, in their individual and official	:	
capacities,	:	
Defendants.	:	
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To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer within twenty (20) days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the State of New York, or within thirty (30) days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
February 20, 2017

s/ Aymen A. Aboushi
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